

such fashion would promote judicial efficiency and economy—and not thwart any purpose of the anti-SLAPP law.” (*Id.* at 751.)

The facts in *Oakland Bulk* reflect the procedural history of the case at hand. Although MHC TT LP attempted to file its anti-SLAPP motion earlier, the motion was ultimately not filed until five days before the hearing on Defendants’ demurer and motion to strike. The Court sustained the demurrer in part, and allowed Plaintiff leave to amend the SAC. Proceeding with the anti-SLAPP motion on the SAC now would be analyzing what will soon be a superseded complaint, as in *Oakland Bulk*.

Even if the Court wished to proceed with the motion, doing so would prejudice Plaintiff. Although Plaintiff previously filed an opposition on the merits of the anti-SLAPP motion (likely not realizing that the initial motion had been rejected for filing by the Court Clerk), Plaintiff’s opposition was filed before the Court sustained the demurrer to the SAC. As noted above, seven causes of action survived the demurrer against MHC TT LP. The resubmitted anti-SLAPP motion, filed on May 21, 2026, is currently unopposed.

Accordingly, Plaintiff has not specifically addressed the seven remaining causes of action on their merits. Because the party opposing the anti-SLAPP motion has the burden of proof to establish a probability that they will prevail on whatever claims are asserted against the defendant under C.C.P. § 425.16(b), Plaintiff will be prejudiced if the Court proceeds with the anti-SLAPP motion on the merits of the seven remaining causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505408	THE CHANG FAMILY TRUST, BY AND THROUGH ITS CO-TRUSTEES, JOHN H. CHANG AND AILEEN HSIAOLIN WANG	APPLICATION FOR RIGHT TO ATTACH ORDER

Tentative Ruling: Hearing for the Right to Attach is continued to 6/17/27.

Request to narrowly seal Defendants’ opposition is granted.

“The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. [Citation.] Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are ‘presumptively open.’ [Citation.]” (*Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 596–597, 57 Cal.Rptr.3d 215.) As *NBC Subsidiary* explained, “the public has an interest, in *all* civil cases, in observing and assessing the performance of its public judicial system, and that interest strongly supports a general right of access in ordinary civil cases.” (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1210, 86 Cal.Rptr.2d 778, 980 P.2d 337.) “

Turning to the first of the *NBC Subsidiary* findings, in footnote 46 *NBC Subsidiary* listed examples of various interests that courts have identified as potentially constituting an overriding interest to justify closure of courtroom proceedings and by inference sealing otherwise open court documents. They include an accused's interest in a fair trial; a civil litigant's right to a fair trial; protection of minor victims of sex crimes from further trauma and embarrassment; privacy interests of a prospective juror during individual voir dire; protection of witnesses from embarrassment or intimidation so extreme that it would traumatize them or render them unable to testify; protection of trade secrets; protection of information within the attorney-client privilege; enforcement of binding contractual obligations not to disclose; safeguarding national security; ensuring the anonymity of juvenile offenders in juvenile court; ensuring the fair administration of justice; and preservation of confidential investigative information. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1222, fn. 46, 86 Cal.Rptr.2d 778, 980 P.2d 337.)

Here, Petitioner request to seal of proprietary business and financial information, including its Incentive and Compensation and Change Control Plan and related agreements are the type of overriding interest *NBC Subsidiary* that justify sealing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506046	ESPARZA VS CR&R INCORPORATED	MOTION TO BE RELIEVED AS COUNSEL FOR RICK ESPARZA

Tentative Ruling: Plaintiff's Motion to be Relieved as Counsel is granted upon compliance with CRC §3.1362(d).

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600253	MALHOTRA VS RIVIAN AUTOMOTIVE, INC.	DEMURRER TO ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff's Demurrer as to the 28th and 44th Causes of Action is sustained, and overruled as to the remainder.

The California Code of Civil Procedure provides three grounds for a demurrer to an answer:

- a) The answer does not state facts sufficient to constitute a defense.
- b) The answer is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible.
- c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.

CCP § 430.20. CCP § 430.050 provides that a demurrer to an answer may be taken in whole or to one or more of the defenses.

CCP § §430.20(a) provides that a demurrer to an answer be made on the ground that an answer "does not state facts sufficient to constitute a defense." However, there are